HOPETECH ENTERPRISES (PRIVATE) LIMITED
versus
GONDWANALAND (PRIVATE) LIMITED
and
THE SHERIFF FOR ZIMBABWE
and
THE REGISTRAR OF COMPANIES
and
THE REGISTRAR OF DEEDS
and
PETER ARNOLD MIDGLEY
and
KENIAS SIBANDA
and
PRINCES PARK (PRIVATE) LIMITED
and
TATANGA CIVIL AND STRUCTURAL ENGINEERING (PRIVATE) LIMITED
and
REDCLIFF BRICK AND TILE COMPANY (PRIVATE) LIMITED
and
GENERAL AUTO AND DIESEL REPAIRS (PRIVATE) LIMITED
and
ANTECH LABORATORIES (PRIVATE) LIMITED
and
INDUSTRIAL COMMODITY AND CONSULTING SERVICES (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 1 & 7 April 2026

Urgent Chamber Application

C. C. Mumba, for the applicant
P. E. Chivhenge, for the 1st respondent
No appearance for the 2nd – 12th respondents

DEMBURE J:

1. This is an opposed urgent chamber application for stay of execution. The applicant seeks that the execution of this court's judgment granted on 6 March 2026 in Case No. HCH 4020/25 in favour of the first respondent be stayed pending the determination of its

application for rescission of default judgment filed under Case No. HCH 1314/26. The application for rescission of default judgment was made in terms of rule 29(1) of the High Court Rules, 2021, it being contended that the court order issued on 6 March 2026 was granted in error. The exact relief sought by the applicant is as follows:

> "**TERMS OF FINAL ORDER SOUGHT**
>
> That you show cause to this Honourable Court, why a final Order should not be made in the following terms:
>
> IT IS ORDERED THAT:
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> 1. Execution of the Declaratory Order and Consequential Relief granted in default by the Honourable Justice DEMBURE on 6th March 2026 and issued on 10th March 2026 under reference case number HCH 4020/25; be and is hereby stayed, pending determination of the Court Application for Rescission of Default Judgement filed under reference case number HCH 1314/26.
> 2. The 1st Respondent to pay costs of suit on a legal practitioner and own client scale.
>
> **INTERIM RELIEF GRANTED**
>
> Pending determination of this matter, the Applicant is granted the following relief:
>
> 1. The 2nd to 4th Respondents be and are hereby ordered not to enforce and/or execute and/or otherwise give effect to the Declaratory Order and Consequential Relief granted in default under reference case number HCH 4020/25."

THE BACKGROUND

2. The applicant and the first respondent have been wrangling over the ownership and control of the companies commonly referred to as the 'Midgley Group of Companies', namely the seventh to the twelfth respondents.

3. On 6 March 2026, this court, after hearing submissions from the parties' legal practitioners under Case No. HCH 4020/25 upheld the preliminary point raised against the applicant, then the third respondent, that its opposing affidavit, deposed to by one Simba Matake, was fatally defective for the main reason that it was based on hearsay evidence. The court struck out the applicant's opposing papers. The court also found that the other respondents' papers did not constitute valid oppositions to the application filed by the first respondent. Accordingly, the court proceeded to deal with the matter as unopposed and granted the application for a declaratory order and consequential relief in the following terms:

> "1. The Application for a Declaratory Order and consequential relief be and is hereby granted.

2. The Cession Agreement dated 15 November 2011, between the 1st and 2nd Respondents be and is hereby declared null and void.
3. It is hereby declared that the Memorandum of Agreement entered into by the 1st Respondent and 3rd Respondent, represented by Lazarus Paradzayi, on the 13th of November 2006, is null and void.
4. It be and is hereby declared that the Addendum to the original Agreement [of Sale/Cession in paragraph 2.1 above] between the 1st Respondent and the 3rd Respondent, represented by Lazarus Paradzayi, dated the 14th of July 2011, is null and void.
5. The Memorandum of an Investment Agreement between the Applicant, the Midgley Group of Companies and Peter Arnold Midgley on the 25th of April 2007, be and is hereby declared valid and extant.
6. That it be and is hereby declared that the 10,000 Ordinary Shares in Redcliff Brick and Tile Company (Pvt) Ltd are solely and validly held by the Applicant.
7. That it be and is hereby declared that 40,000 Issued Shares in Tatanga Civil Structural Engineering (Pvt) Ltd are solely and validly held by the Applicant.
8. That it be and is hereby declared that 20,000 Issued Shares held in Tatanga Civil Structural Engineering (Pvt) Ltd are solely and validly held by Prince Park (Pvt) Ltd.
9. That it be and is hereby declared that the 10,000 Shares in General Auto and Diesel Repairs (Pvt) Ltd are solely and validly held by the Applicant.
10. That it be and is hereby declared that the 170,000 Ordinary Shares in the company Prince Park (Pvt) Ltd are solely and validly held by the Applicant.
11. That it be and is hereby declared that the Ordinary Shares in the company Industrial Commodity and Consulting Services (Pvt) Ltd are solely and validly held by the Applicant.
12. That it be and is hereby declared that the Applicant is the sole entity which is entitled to occupy, control, possess and manage the following properties:

12.1. Stand number 218 QUEQUE Township being a portion of QUEQUE Townlands measuring 3 438 square metres, registered under DEED OF TRANSFER number 595/08.

12.2. Stand numbers 107, 108 and 109 QUEQUE, each measuring 674 Square metres, all registered under DEED OF TRANSFER number 1025/08.

12.3. PURDOWN OF ASPDALE ESTATE in the extent of 131,6744 hectares situate in the district of QUEQUE registered under DEED OF TRANSFER number 2586/90.

12.4. The remaining extent of stand 916 QUEQUE Townlands measuring 6087 square metres registered under DEED OF TRANSFER number 3032/87.

12.5. Stand 925 and 926 of QUEQUE Township of Stand 918A QUEQUE Township registered under Deed of Transfer Number 465/2008 and 1471/56, respectively.

12.6. Lot 17 Sommerset Estate of JUDD'S FARM situate in the district of QUEQUE, measuring 4,002 square metres registered under DEED OF TRANSFER Number 2318/81.

13. Pursuant to paragraph 12 of this order, the 3rd Respondent's occupation described under paragraphs 12.1 to 12.6 above be and is hereby declared unlawful and illegal.

Consequently,

14. The 3rd Respondent and all those claiming occupation through it be and are hereby ordered to vacate all premises described in paragraphs 12.1to 12.6 above

forthwith, failing which the 9th Respondent shall be empowered to eject the 3rd Respondent and all those claiming occupation through it therefrom.

15. The 1st, 2nd and 3rd Respondents shall bear the costs of this application, jointly and severally, the one paying, the other to be absolved."

4. Following the above decision, the applicant's erstwhile legal practitioners renounced agency and subsequently, the applicant's current legal practitioners assumed agency.

5. On 18 March 2026, the applicant filed a court application for rescission of default judgment in terms of rule 29(1). It contended that the order of 6 March 2026 was erroneously sought by the first respondent and erroneously granted in its absence and the other respondents therein. It further alleged that the order contained a patent error and was granted as a result of a mistake common to both parties, being their failure to indicate the action proceedings commenced by the applicant against the respondents under Case No. HC 874/14 had been reinstated pursuant to a consent order issued in Case No. HCBC 379/25. On that basis, the applicant sought that the judgment be rescinded, along with other ancillary relief.

6. It is also common cause that in April 2014, under Case No. HC 874/14, the applicant had a summons issued against the other respondents in the High Court at Bulawayo, claiming to have acquired ownership of the 'Medley Group of Companies'. The first respondent was joined to those proceedings by consent in 2015, and the parties' matters related to the dispute would be consolidated and heard as a stated case. The matter under Case No. HC874/14 lapsed in terms of rule 84 in March 2025. The applicant sought reinstatement under Case No. HCBC 379/25. While the applicant's application for reinstatement was pending, the first respondent filed a court application for a declaratory order and consequential relief under Case No. HCH 4020/25.

7. The first respondent contended that it lawfully acquired ownership and control of the 'Midgley Group of Companies' through an investment agreement with the said companies and Peter Arnold Midgley, and that the purported agreement entered into between Peter Arnold Midgley and the applicant herein, represented by one Lazarous Paradzayi, and the addendum thereof were null and void. The court granted the order

sought under HCH 4020/25 on 6 March 2026, and that is the order that is being impugned.

8. The applicant averred that the matter under Case No. HC 874/14 was reinstated by consent of the parties on 16 October 2025. It further contended that the court heard the matter under HCH 4020/25 and granted the default judgment in favour of the first respondent without the knowledge that the matter under HC 874/14 had been reinstated and was pending before this court at Bulawayo. It was argued that on that basis, the order was erroneously sought and granted, and/or contains errors or omissions, or was granted as a result of a mistake by both parties. It must, therefore, be set aside in terms of rule 29(1).

9. The applicant described the court order of 6 March 2026 repeatedly as the 'Erroneous Order'. I must state in passing that, despite the ridicule the applicant, in its papers, heaped upon the said court order, it is, by law, valid and binding on the parties unless and until it is set aside or reversed. It does not matter whether the order was granted in default or whether a party believes that the order was erroneously granted. It remains valid and enforceable against the parties to it as long as it has not been reversed. This position was affirmed in *Econet Wireless (Pvt) Ltd* v *Minister of Public Service, Labour and Social Welfare* SC 31/16, at p 6, where BHUNU JA said:

> "The doctrine of obedience of the law until its lawful invalidation was graphically put across by LORD RADCLIFFE in *Smith v East Elloe Rural District Council* [1956] AC 736 at 769 when he observed that:
>
> > "An order, even if not made in good faith, is still an act capable of legal consequences. It bears no brand of illegality on its forehead. Unless the necessary procedures are taken at law to establish the cause of invalidity and to get it quashed or otherwise upset, it will remain as effective for its ostensible purpose as the most impeccable of orders."
>
> If it were not so, and every litigant challenging the validity of any law was excused from obeying the law pending determination of its validity, there would be absolute chaos and confusion rendering the application of the rule of law virtually impossible."

10. After filing the court application for rescission of the default judgment under Case No. HCH 1314/26, the applicant filed an urgent chamber application for stay of execution on 19 March 2026. The application was struck off the roll for the reason that it was fatally defective. This led the applicant to file the present application on 26 March 2026 after

addressing the defect afflicting its previous application. It averred that the application was urgent and that it would suffer irreparable harm if the application was not granted, as its application for rescission of judgment would be rendered academic. It also contended that it had prospects of success in the application for rescission of default judgment and prayed for a provisional order to be granted in terms of the draft filed of record.

11. The first respondent raised four points *in limine* in its opposing affidavit. However, at the hearing, Mr *Chivhenge* only pursued two preliminary points, namely that the matter was not urgent and that the application was fatally defective for non-compliance with rule 60(1) in that it gave the first respondent the wrong *dies induciae* of ten days to file its papers.

12. The first respondent also related to the merits of the matter. In particular, it was disputed that the order of 6 March 2026 was a default judgment and that it was erroneously sought or granted. It was contended that the applicant was represented throughout the proceedings at the time the order was granted and cannot distance itself from the conduct of its former legal practitioners. It was further averred that the applicant had even failed to comply with the reinstatement order, and its own failure to prosecute the matter in HC 874/14 led to the present situation. The declaratory order supersedes any unresolved issues in HC 874/14.

13. It was further disputed that the applicant would suffer any irreparable harm. The first respondent stated that it had not sued out any writ of execution and that it would be in the interests of justice for there to be finality in the litigation. The first respondent also contended that the applicant had no prospects of success as the order was not erroneously granted and it contained no patent error. The allegation that there was a mistake common to the parties was also false. The reinstatement order was, in any case, placed in the record in Case No. HC 4020/25 indirectly through a letter dated 20 November 2025. The applicant had every opportunity to bring it to the court's attention but chose not to. It was finally prayed that the application must be dismissed with costs.

14. On 1 April 2026, I heard the first respondent's two preliminary points and dismissed them for lack of merit. The parties went on to make submissions on the merits.

ORAL SUBMISSIONS MADE FOR THE PARTIES

SUBMISSIONS FOR THE APPLICANT

15. Mr *Mumba* submitted that in motivating the application on the merits for the stay of execution, he would address four key aspects: irreparable harm, balance of convenience, interests of justice, and prospects of success. He argued that, *prima facie*, there was irreparable harm. The erroneous order granted under HCH 4020/25 grants consequential relief of eviction. Eviction is a permanent prejudice. If the order is not stayed pending the rescission application, there would be no point in proceeding with that application when the applicant has been stripped of occupation through that consequential relief. It was further argued that the order empowers the first respondent to instruct the Registrar of Companies to effect changes. Once these changes are made, the new holders of the disputed shares will be able to deal with those companies' activities, and that will not be undone. The potential prejudice is not merely financial. It is very much practical, physical and potentially irreparable. The issue of ownership of these companies is the very issue the parties are in dispute over. And so, to retain an extent order which is dispositive of those rights is in itself a risk to irreparable harm.

16. On the issue of balance of convenience, it was argued that the applicant seeks, in this instance, a temporary relief for the order to be stayed pending a determination of the rescission application. There is no prejudice to the respondent if this order is stayed pending that matter. The application for rescission has already been filed, and there will not be any inordinate delay in the matter being finalised. It is more convenient to pause execution than to have it continue and potentially wreak irreparable harm. Counsel referred me to the case of *Santam Ltd v Norman & Anor* 1996 (3) SA 502 at 505 E-F. It was held that execution must be stayed where real and substantial justice requires that.

17. Counsel further submitted that the order was sought and granted in error. The respondent argues that it is a final order. It is a default judgment, according to the applicant. Surely the interests of justice favour staying the order rather than having it enforced prior to the resolution of those allegations of error. That is why specifically rule 29 exists.

18. On the issue of prospects of success, counsel directed me to the case of *Grantully (Pvt) Ltd & Anor* v *UDC Ltd* 2000 (1) ZLR 361 (S). He argued that the case says that a court is obliged to rescind or vary an order that was sought or granted in error. There was a pending matter under HC 874/14 regarding ownership of the seventh to twelfth respondents in the present matter. The order by consent granted in Bulawayo addresses the dispute between the parties, namely, who, between the applicant and the first respondent in this case, owns the seventh to the twelfth respondents. It was improper for the court to grant a declaratory order in respect of those seventh to twelfth respondents as if the matter under HC 874/14 had lapsed. The court order granted under HCH 4020/25 issues a declaration that the seventh to twelfth respondents are essentially owned by the first respondent, which is the exact question that has been pending since 2014 in Bulawayo. At the time the order was granted, the parties did not take sufficient steps to inform the court of their consent to the reinstatement of the matter. By the time the order under HCH 4020/25 had been granted, it was now granting a declaratory order in respect of a subject matter that had been revived in Bulawayo. This is an error. The court could not have granted the order, which would render the pending matter a *brutum fulmen*. The proper interests of justice and procedure in that instance would be to let proceedings under HC 874/14 be ventilated to finality.

19. Mr *Mumba* also argued that there was an error in the wording of the order itself. The applicant, as the respondent in that matter, was represented by Mr *G. Madzoka*, whose papers were struck out when the court upheld the preliminary point. To that end, the matter was automatically unopposed. Accordingly, the judgment granted then ought to have been a default judgment. The court order issued does not place the applicant in default. It captures Mr *Madzoka* as appearing for the respondents, notwithstanding that the papers and the presence were struck out. He argued that the reference to him as having appeared for the first to the ninth respondents was an error.

20. I was referred to the case of *Zvarevashe* v *Ndlovu* SC 40/06, which holds that the defining feature of a judgment granted in default is the other party's absence. A legal default obtains once the opposing affidavit is struck out. The moment the respondents'

papers were struck out, the matter became unopposed. The respondents were not in attendance. To the extent that the judgment proposes that they were, it is a legal error which ought to be corrected. That is one of the basis upon which the rescission is sought. The argument has prospects of success because it is a fact that Mr *Madzoka* was not appearing. He had been barred.

21. It was also submitted that the errors of projecting a final order which dealt with the matter on the merits, having heard arguments from both parties, are erroneous in their implication. He argued that this was sufficient to obtain temporary relief of stay of execution of the order. He further contended that the order contained a patent error by reference to the matter being determined upon hearing both counsels. Counsel maintained that at the time the order was granted a matter dealing with the same issues had been reinstated and this fact was not brought to the attention of the judge and if the judge had been presented with the court order reinstating that matter that would have influenced the judge in the very least to consider that and not issue an order that usurps a fellow High Court jurisdiction in the circumstances.

SUBMISSIONS FOR THE FIRST RESPONDENT

22. Conversely, Mr *Chivhenge* urged the court to see through the applicant's gamesmanship. He argued that when the matter was heard, the reinstated matter had not been set down. It was only the matter in HCH 4020/25 that had been set down. There was a letter dated 5 December 2025 at p 16 of the notice of opposition, addressed to the Registrar. It clearly placed on record that a matter was reinstated, that it is in Bulawayo, and that the order for reinstatement was actually attached there. The applicant had failed to abide by the terms of the order by consent. As such, there was justification for the matter under HCH 4020/25 to proceed. This debunks allegations that the issue of reinstatement was not placed before the court. It was placed before the court. It also debunks the allegation that there was a mistake common to both parties. There was no mistake. After the letter was written, neither the applicant nor the other respondents said anything. If anything, they acquiesced to the matter under HCH 4020/25, progressing as it did.

23. Counsel further argued that the balance of convenience and the interests of justice favour finality to litigation, not litigation by gamesmanship or brinksmanship. He maintained that there was no error. The parties were clear about what they were doing. And, in fact, the first respondent had taken steps to advise the court as to what had transpired. On the issue of an error in the issuance of the order itself, it was submitted that the court ought to take note that the applicant was then represented by Mr *Madzoka*. The door was not shut on him as he was heard on the preliminary points, which were ultimately and rightfully upheld by the court. That gave way to the granting of the application under HCH 4020/25.

24. Mr *Chivhenge* further argued that the *Zvinavashe* case (*supra*) deals with the absence or failure of a party to attend, not what is being alluded to by counsel. The applicants were ably represented in those proceedings. It is disingenuous for the applicant to now turn around and say they were not there when they were, and when submissions were made on their behalf. A determination has already been made with respect to the rights of the parties. The issue is now moot. The interests of justice demand that there be finality to litigation, and so does the balance of convenience.

25. It was also submitted that if indeed the applicant had any gripe with how the proceedings under HCH 4020/25 panned out, then it ought to have appealed against the striking out of their opposition. They ought to have challenged some misdirection with respect to the preliminary points raised, but they did not. The approach of the applicant's new counsel is erroneous. The application for rescission in the circumstances enjoys zero prospects of success.

REPLYING SUBMISSIONS FOR THE APPLICANT

26. In reply, Mr *Mumba* reiterated that he was merely seeking the interests of justice. He argued that the letter at p 16 of the notice of opposition was not copied to the applicant but was addressed to the Registrar. The first respondent appeared and argued, but did not attach the order for reinstatement of the matter in HC 874/14. They made an application as if there was nothing going on under HC 874/14. Neither party alluded to the court order in the proceedings, yet both parties consented to the reinstatement. That made the

error common to both parties. The order ought to be granted, so that the disputes can be ventilated.

27. Counsel further argued that there was no finality that is intended by the law. It must be finality on the merits. The dispute was not resolved on the merits. The respondent's papers were struck out, and the judgment that followed was a default judgment. The party in that situation can only seek rescission. They have no *locus* to appeal against the decision granted in default. They were not there. See *Chintengo* v *Tredcor Zimbabwe (Pvt) Ltd t/a Trentyre Zimbabwe* SC 67/19. Both parties are estopped from denying the effect of the error that there was a pending matter in HC 874/14. By their mutual conduct, they caused the judge to make errors of his own.

THE QUESTION FOR DETERMINATION

28. I must determine whether special circumstances exist for stay of execution.

THE LAW

29. It is trite that the court enjoys inherent power, subject to the rules, to control its own process and procedures. Generally, a party that obtains a court order is entitled to execute or 'enjoy its fruits'. The court, in the exercise of a wide discretion, may stay execution where special circumstances exist. In other words, the court may only stay the use of its process of execution if satisfied that real and substantial justice demands so. The party seeking the relief bears the *onus* to satisfy the court that an injustice would otherwise be caused to him or her. These principles were restated in *Mupini* v *Makoni* 1993 (1) ZLR 80 at p 83, where GUBBAY CJ (as he then was) had this to say on stay of execution:

> "Execution is a process of the court, and the court has an inherent power to control its own process and procedures, subject to such rules as are in force. In the exercise of a wide discretion the court may, therefore, set aside or suspend a writ of execution or, for that matter, cancel the grant of a provisional stay. It will act where real and substantial justice so demands. The *onus* rests on the party seeking a stay to satisfy the court that special circumstances exist. The general rule is that a party who has obtained an order against another is entitled to execute upon it. Such special reasons against execution issuing can be more readily found where, as in *casu*, the judgment is for ejectment or the transfer of property, for in such instances the carrying of it into operation could render the restitution of the original position difficult. See *Cohen v Cohen* 1979 ZLR 184 at 187C; *Santam Ins Co Ltd v Paget* 1981 ZLR 132 (G) at 134G-135B; *Chibanda v King* 1983 (1) ZLR 116 (H) at 119C-H; *Strime v Strime* 1983 (4) SA 850 (C) at 852A."

See also *Mashamhanda v Bariadie Investments (Pvt) Ltd & Anor* SC17/24 para 20.

APPLICATION OF THE LAW TO THE FACTS

30. The applicant argued that the court order issued on 6 March 2026 was erroneously sought or granted and that it also contained a patent error and must be vacated. To that end, it contended that the pending court application for rescission of default judgment has prospects of success. It is common cause that the applicant was legally represented in the proceedings in Case No. HCH 4020/25. At the hearing, it was duly represented by Mr *G Madzoka*. The first respondent, then the applicant, duly represented by Mr *T Mpofu,* raised a point *in limine* that the applicant's opposing affidavit was fatally defective on the ground that it was based on hearsay evidence and that the deponent's signature was electronic. The record is clear that the legal practitioners made extensive submissions on the point *in limine*.

31. It was argued that the opposing papers being fatally defective, the application was unopposed and ought to be granted. In my *ex tempore* judgment, I upheld the point *in limine* and struck out the applicant's opposing papers. The other respondents' papers were also found to be invalid for different reasons. The matter proceeded as unopposed, resulting in the operative order, which is subject to the pending application for rescission. What is clear is that the applicant was not heard on the merits, as the application was duly considered an unopposed matter following the respondents' papers being expunged from the record. The resultant declaratory order and consequential relief were, therefore, technically, a default judgment. The issue of whether the judgment can be classified as a default judgment in the circumstances of the parties' proceedings had long been settled by the Supreme Court. The law is that a party present but does not make a defence is deemed to be absent. See *Chintengo v Tredcor Zimbabwe (Pvt) Ltd t/a Trentyre Zimbabwe* (*supra*) where MALABA DCJ (as he then was) said:

> "In *casu*, the appellant`s legal representative was barred from making submissions before the court *a quo* by virtue of his failure to timeously file heads of argument. As a result, the judgment was granted in default.
>
> The question of what is meant by "default" was considered in *Katritsis* v *De Macedo* 1966 (1) SA 613 (A) at p 618B as follows:

> "It is clear from the authorities that the default in regard to a defendant is not confined to his failure to file the necessary documents required by the Rules in opposition to the claim against him, or to appear when the case is called, but comprises also failure to attend Court during the hearing of the matter."

In the above case, the court, in quoting, *Voet*, also emphasised that a defendant who is present but does not make a defence, is deemed to be absent. It held at 618D-E:

> "*Voet*, 2.11.11., makes it even clearer. I quote from *Gane*'s translation:
>
> 'Moreover, not only is he who does not attend at all on the day fixed to be accounted a dallier and defaulter, but also he who does indeed attend, but does not take in hand the business for the taking in hand of which the day had been appointed. For instance, a plaintiff appears and makes no claim: or a defendant does not challenge the plaintiff's claim when he should do so. He who though present makes no defence is surely reckoned in the position of one who is not there; and he who when called upon does not plead is deemed to have been futile and is expressly classed as contumacious.'"

It therefore becomes apparent that the appellant, because of his failure to file heads of argument, was not before the court a quo and could not address it. In the circumstances, the court properly entered a default judgment against him." (*my emphasis*)

32. There is no doubt that after the applicant's papers were struck out, it was now deemed to be absent, and the resultant judgment would be a default judgment. It does not necessarily follow that the recording of the parties who were in attendance in the court order would make the order erroneous. The mere record does not change anything as the law deems the applicant to be absent once it was disabled from presenting its defence to the application. It follows that such a default judgment would not be appealable unless one seeks to restrict the challenge to the decision finding the opposing papers fatally defective. A rescission of the default judgment in terms of the applicable court rules would be appropriate. See the *Chintengo* and *Zvinavashe* cases (*supra*).

33. The pending court application for rescission of default judgment was filed in terms of rule 29(1), wherein the applicant alleged that the court order was granted in error. Rule 29(1) reads as follows:

> "The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary—
>
> (a) an order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby; or
>
> (b) an order or judgment in which there is an ambiguity or a patent error or omission, but only to the extent of such ambiguity, error or omission; or
>
> (c) an order or judgment granted as a result of a mistake common to the parties."

34. Where a party alleges that the order was erroneously sought or granted, the law has already been settled as to what constitutes an error. While the superior court was referring to rule 449 of the old High Court Rules, its provisions are similar to those under rule 29(1). Thus, in *Munyimi* v *Tauro* 2013 (2) ZLR 291 (S) GARWE JA (as he then was) stated the law as follows:

> "Where a court is empowered to revisit its previous decision, it is not, generally speaking, confined to the record of the proceedings in deciding whether a judgment was erroneously granted. The specific reference in rule 449 to a judgment or order granted "in the absence of any party affected thereby" envisages a situation where such a party may be able to place facts before the latter court, which facts would not have been before the court that granted the order in the first place – see *Grantually (Pvt) Ltd & Anor v UDC Ltd* 2000 (1) ZLR 361(S), 364H – 365 A-B…
>
> The position may now be accepted as correct that a distinction should be drawn between a case where a court *mero motu* decides to rescind or vary an order and one where such an order is sought on the basis of an application. In this connection I would agree with the remarks of JAFTA J in *Mutebwa* v *Mutebwa & Anor supra* at p 201 A-H that:
>
> > "… the error should appear on the record but only in cases where the Court acts *mero motu* or on the basis of an oral application made from the Bar for rescission or variation of the order. For obvious reasons, in such cases the Court would have before it the record of the proceedings only. The same interpretation cannot, in my respectful view, apply to cases where the Court is called upon to act on the basis of a written application by a party whose rights are affected by an order granted in its absence. In the latter instance the Court would have before it not only the record of the proceedings but also facts set out in the affidavits filed of record. Such facts cannot simply be ignored and it is not irregular to adopt such a procedure in seeking rescission. In fact, it might be necessary to do so in cases such as the present, where no error could be picked up ex facie the record itself. In my view, the failure to show that the error appears on the record of the proceedings before KRUGER AJ cannot constitute a bar to the applicant being successful under Rule 42(1) (a). It is not a requirement of the Rule that the error appear on the record before rescission can be granted. Therefore, I do not, with respect, agree with ERASMUS J's conclusion that the Rule requires the applicant to prove the existence of an error appearing on the record and that the Court considering rescission is, like an appeal Court, confined to the record of the proceedings. The Rule reads as follows:
> >
> > "42(1) The Court may, in addition to any other powers it may have, *mero motu* or upon the application of any party affected, rescind or vary – (a) an order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby…"
>
> There is nothing in the language used in the Rule which indicates that the error must appear on the record of the proceedings before the power conferred could be exercised. The contention that the Rule is confined to cases where the error appears on the record cannot, in my opinion, be correct. Such an interpretation places an unwarranted limitation

> on the scope of the Rule. Decided cases show that relief may be granted under this Rule if: (i) the Court which made the order lacked competence to do so; (ii) at the time the order was made the Court was unaware of facts which, if then known to it, would have precluded the granting of the order; or (iii) there was an irregularity in the proceedings. See *Promedia Drukkers & Uitgewers (Edms) Bpk v Kaimowitz and Others* 1996 (4) SA 411 (C) at 417G-I and the authorities referred to therein." (*my emphasis*)

35. Further, in *Zuze v The Trustees for the time being of Bonganyi Rushworth Mlambo & Anor* SC 69/19, the court went on to define the errors as errors of both law and fact, which, had the court known otherwise, would have made it refuse to grant judgment. PATEL JA (as he then was) had this to say:

> "For the purposes of r 449(1)(a), an error occurs where there is a relevant fact that was not brought to the attention of the court and the nature of that fact or the given circumstances are such that, had that fact been brought to its attention at the relevant time, the judgment to be rescinded would not have been granted. See *Grantully (Pvt) Ltd & Anor v UDC Ltd* 2000 (1) ZLR 361 (S); *Wector Enterprises (Pvt) Ltd v Luxor (Pvt) Ltd 2015* (2) ZLR 57 (S) … The rule clearly does not specify the kind of errors that it contemplates. However, a literal and plain reading of the rule would suggest that it encompasses both errors of law and errors of fact. There is nothing in the rule to indicate otherwise. By the same token, I am unable to find anything in the *Grantully or Wector Enterprises cases (supra)* to support Mr Mutasa's contention that the error concerned must be an error of fact in order to invoke the application of the rule. In any event, an error of fact might also necessarily implicate an error of law in particular circumstances where the two errors are inextricably intertwined." (my emphasis)

36. The critical point is that the fact must be such that had it been known to the court at the time, it would not have granted the order sought to be rescinded. Mr *Mumba* attacked the court order of 6 March 2026 on the basis that it was granted in error. He argued that had the fact that there was a pending matter in Bulawayo under HC 874/14, which had been reinstated by an order by consent, it would not have granted the order. While the said order for reinstatement of that matter was placed before the court by letter to the Registrar, uploaded to the record through the IECMS, even assuming that fact was not made known to the court on 6 March 2026, there would be completely nothing to preclude the court from granting the order merely because there was another pending case.

37. There was no usurpation of the court's jurisdiction in Bulawayo over the matter in HC 874/14 by this court's determination of the dispute before it, as argued by Mr *Mumba*. The reinstatement of a matter is simply that; it is pending. The pendency of a matter is

not an absolute or complete bar to proceedings in an allegedly similar matter. It is trite that there is a defence of *lis alibi pendens* which must be specially pleaded. Again, even when it is pleaded, it is not a plea in bar but merely a dilatory plea. Thus, its invocation remains within the discretion of the court upon its requirements being satisfied. Accordingly, if the court is satisfied that the requirements of the defence have been established, it may either invoke the defence by staying proceedings pending the determination of the other pending matter, or it may decide to proceed with the matter if it is in the interests of justice to do so. See *Mhungu* v *Mtindi* 1986 (2) ZLR 171 (S). Thus, whether or not the fact was brought to its attention, the court could not have been precluded from granting the order merely based on a pending matter. It cannot seriously be argued that the order was erroneously sought or granted on the alleged basis.

38. It is common cause that the said reinstated matter was not set down before the matter in Case No. HC 4020/25 was heard. The mere existence of the order for its reinstatement cannot sustain the averments that the court improperly determined the matter properly before it. There was no order resolving the matter in HC 874/14 to render the proceedings before me precluded by the principles of issue *estoppel* and *res judicata*. In any case, before the parties were heard, the applicant did not raise the pendency issue at all. The applicant was also no longer before the court after its notice of opposition was struck out. To that end, the question of whether another matter was pending did not arise. It could not arise in the circumstances. Further, even if that fact existed, it could not have prevented the court from determining the dispute before it and issuing the order as it did. The effect that the order has in rendering the applicant's own cause moot does not render the order erroneous. The main basis, therefore, for the rescission sought is completely hopeless and doomed to fail. The ground is not arguable at all.

39. The other basis for the rescission sought is that the order contains a patent error or omission. What constitutes a patent error possible of correction in terms of r 29(1) (b) has already been ventilated by the courts. In *Jongwe & Anor* v *National Foods Ltd* SC 91/25, para 35, UCHENA JA stated that:

"What constitutes a patent error for purposes of r 29 (1) (b) must be a mistake by the court, in pronouncing its intended judgment or order. This was clarified by DUBE J (as she then was) in *Hopcik Investments (Pvt) Ltd* v *Minister of Environment, Water and Climate and City of Harare* HH 336/16 at pp 4 to 5 of the judgment as follows:

> "Coming to the nature of the error made, Herbstein and Van Winstein in *The Civil Practice of the High Courts of South Africa*, 5th edition at page 934, describe a 'patent error or omission' as:
>
> 'An error or omission as a result of which the judgment or order granted does not reflect the intention of the judicial officer pronouncing it.
>
> The authors state that the patent error or omission must be attributable to the court itself and that relief will only be accorded where the terms of the judgment or order do not reflect the true intention of the presiding judge. In the *Firestone* case, Trollip J held at p 304 DH, that in a case involving correction of an order in terms of r 42 of the Uniform Court Rules of South Africa which is identical to our own r 449, that the court has the power to clarify its own judgments or orders so as to give effect to their true meaning and true intention of the court for as long as it does not alter the 'sense and substance' of the judgment or order. Further that the court's intention is to be ascertained primarily from the language or order as construed according to the usual rules. The same reasoning was followed in *Faheem Investments Pty Ltd* v *The Attorney General & Ors* 2010 1 BLR 675 HC. A patent error in the context of r 444 is apparent or clear from either the judgment or order. A court may only correct its judgment or order *moru motu* where it has made a patent error or omission as envisaged in terms of r 449. It is permissible for a judge who has made a patent error or omission in a judgment or order to clarify his order or judgment, of his own free will or motion by correcting it so that it reflects the true intention of the court in circumstances where the error is evident from the face of the judgment or order. The court should endeavour to do so without altering the 'sense or substance' of the judgment or order and must ensure that it does not admit a different interpretation to the judgment or order. Consequently, this exception is limited only to the correction of the order. The r 449 (1) (b) (2) caters for mistakes attributable to the court. The correctness of the order or judgment originally issued is not an issue but rather whether the court made a patent error or omission and in addition whether the order granted reflects the true intention of the court. The court may not substitute its judgment or order for another one completely different. The rule is meant merely to facilitate clarification of orders or judgments.'" (*my emphasis*)

40. The applicant argued that it was not represented at the hearing, and the recording that it was heard was also a patent error. I disagree. The applicant was represented at the hearing. Mr *Madzoka* indeed appeared before me and advanced arguments on the applicant's behalf. While it is not in doubt that after the point *in limine* was upheld, it

could no longer participate, the record that Mr *Madzoka* appeared before me cannot be erased. The default, as I have said, is technical, simply flowing from the fact that the applicant was now deemed absent by operation of the law. The judgment delivered *ex tempore* outlined the reasons why its defence could not be considered or was expunged from the record. It does not necessarily follow, in such circumstances, that the court record showing that Mr *Madzoka* had appeared for the applicant had to be erased. The applicant is simply seeking to make a mountain out of a molehill. This desperation is uncalled for.

41. I agree with the submission by Mr *Chivhenge* that the mere fact that Mr *Mumba* had assumed agency, then he had 'a new gun that can shoot anyhow as he pleases' was erroneous. The applicant would still be held to the conduct of its previous legal practitioners and the arguments they presented. The court granted the application as prayed for in terms of the draft, with an amendment regarding costs unopposed. That was the operative order. The judgment, handed down *ex tempore,* was also very clear in that regard. The court did not make any error. Its intention was clear. The applicant, who was represented by a senior advocate, cannot purport to feign any confusion regarding the proceedings held under Case No. 4020/25, which were also conducted virtually. The parties had the opportunity to take down the court's judgment handed down *ex tempore,* and the operative order referred to by the applicant. To that extent, any diligent legal practitioner would then be clear as to what the court's findings were and how it arrived at the operative order to be able to appreciate how to proceed. The attempts to allege a patent error in the circumstances would be legally untenable. I am not satisfied, therefore, that the said ground is also arguable. It is simply an artificial argument which cannot seriously detain the court. Counsel simply ignored the entire record of proceedings and attempted to mislead the court.

42. The other argument made was that the order was granted by a mistake common to both parties, as there was a pending matter which had been reinstated in Bulawayo under Case No. HC 874/14. I have already addressed the pendency issue above. That another matter is pending before the same court does not create a mistake which could be said to be

common to both parties. After the applicant was deemed absent by operation of law, it was well within the first respondent's rights to pursue its relief before the court. There could not be a mistake. If the applicant was mistaken in expecting the applicant to abandon its cause in circumstances where the application was unopposed merely because of some pending matter, then its unilateral mistake cannot be extended to the first respondent. It must blame no one else but itself for the conduct of its own case.

43. The application for rescission sought is completely unarguable. It fails to meet the test for prospects of success set in our law. See *Mupindu & Ors* v *Mupindu & Anor* SC 115/25 at p 7 para 19. There is clearly no rational basis to hold that the application for rescission pending has a reasonable likelihood that, on being argued before this court, it may be decided in favour of the applicant**.** There is not even a mere possibility of success, which does not suffice, in any event.

44. In my view, therefore, there would be no injustice to talk about for the applicant who seeks to pursue a fruitless journey. It will save nothing but only waste the court's time and resources. The first respondent would, as a result, also suffer unwarranted prejudice having to wait for a hopeless process to reach its logical conclusion. The general rule that the first respondent must execute must be allowed to prevail. The balance of convenience would favour that the first respondent be permitted to enjoy the fruits of the judgment in its favour rather than for it to wait for the determination of an application that has no prospects of success. Irreparable harm cannot, therefore, be suffered by the applicant in the circumstances.

45. The applicant failed to satisfy the court that special circumstances exist for the stay of execution. Accordingly, there is no legal basis upon which I should exercise my discretion in favour of granting the application. It would be a serious miscarriage of justice in the circumstances to order a stay of execution as sought by the applicant. The application cannot succeed. In respect of costs, there is no reason to depart from the general rule that the costs should follow the event.

46. In the result, it is hereby ordered that:

"1. The application be and is hereby dismissed with costs."

DEMBURE J: ……

Corious & Co., applicant's legal practitioners
Rubaya & Chatambudza, first respondent's legal practitioners